

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2016-5472

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
STEFNEY DUNSON, LPC NO. 12817,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Stefney Dunson ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a Professional Counselor ("LPC") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case No. 2016-5472. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around September 14, 2016, Respondent began providing family preservation counseling to the E family.
 - b. Respondent failed to maintain professional boundaries with the family.
 - c. Respondent engaged in an inappropriate, non-therapeutic relationship with the family, including sending excessive and inappropriate text messages to one of the family members.
 - d. Respondent excessively uses habitual substances.

- e. On or around March 13, 2017, Respondent submitted to an evaluation, and the evaluator concluded that Respondent is not safe to practice professional counseling without treatment and monitoring.

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated §12-43-222(1)(e) and (i), C.R.S., which state:

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(e) Habitually or excessively uses or abuses alcohol, a habit-forming drug, or a controlled substance, as defined in section 18-18-102(5), C.R.S.;

(i) Has maintained relationships with clients that are likely to impair such person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives.

PROBATION

6. Respondent's license to practice professional counseling in the State of Colorado is hereby placed on probation for three (3) years commencing from the effective date of this Order. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

7. The period of probation is tolled during any time that Respondent is not practicing in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

8. Respondent shall report to the Board if he discontinues the practice of professional counseling or if Respondent is not practicing as a LPC at the time this Order is executed. Respondent shall notify the Board in writing upon resuming the practice of professional counseling.

9. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a LPC in the State of Colorado and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

CONTINUING EDUCATION

11. During the period of probation, Respondent must successfully complete twenty (20) hours each year of Board-approved professional continuing education ("CE") courses in the areas of boundaries, ethics, and transference/countertransference. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Board. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other certification or licensure requirements.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

12. During the period of probation, Respondent shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed, or prescribed by an authorized person other than Respondent. Respondent shall use such habit-forming drug, controlled substance only as directed by such authorized person and only for the condition identified by such authorized person.

13. Respondent agrees to random urinalysis testing to be monitored and administered by a Board-approved independent agency to ensure compliance with this Order. Urinalysis testing shall be on randomly-selected days each month. Respondent shall sign a release and/or execute any necessary waivers to ensure that the Board-approved agency may report on his progress and compliance with this Order to the Board.

TERMS AND CONDITIONS

14. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

15. All expenses incurred or associated with any requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

16. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

17. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

18. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

19. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

20. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

21. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

22. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

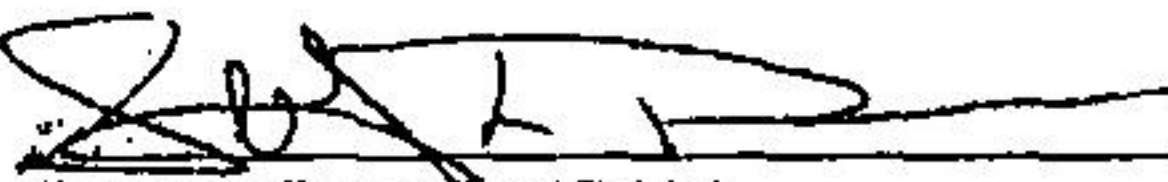
23. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

24. This Order shall be admissible as evidence at any hearing held before the Board.

25. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT


STEFNEY DENSON
LPC 12817

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS


DARCIE MAGNUSON
Program Director

Effective this 14th day of
June, 2017.